

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 22, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook (arriving at 6:13 p.m.), Mr. Luna, Dr. Rinne, Mr. Shanor (arriving at 6:03 p.m.), Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Allen, and pursuant to support received by Mr. Brown and Mr. Luna, agenda item #18 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. [Mr. Shanor joined the meeting in progress]

[CA] Minutes from Regular Meeting of the Governing Body on December 8, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Lois Huff, City Treasurer, provided information available regarding vouchers payable to Action Ads, Inc. (Transit program business card holders and coin purses) and All Traffic Data Services, Inc. (traffic counts for Metropolitan Transportation Organization (MPO)). Providing additional information on the vouchers under discussion were Joe Dougherty, Cheyenne Transit Program Director, explaining that the purchases from Action Ads were for program marketing and passenger use purposes, and Mayor Kaysen, who advised traffic counts for the MPO were conducted at various locations throughout the community. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Amending Section 10.32.030, Decreasing State Speed Limits in Certain Zones, and amending the attached Schedule A-2, of Chapter 10.32, Speed Limits, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present. (#4048)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of the NW1/4 of

Section 21, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, to be known as The Bluffs, 10th Filing Annexation (located between Converse Avenue and Crestridge Drive, north of Foothills Road). Frank Cole, President, United Western Corporation, requested the item be postponed for five weeks to allow for synchronizing of timing for the affiliated final plat and re-zoning actions. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to postpone the item to January 12, 2015, seconded by Ms. Broyles. Mayor Kaysen advised the usual practice of the governing body is to not postpone an item for more than two weeks at a time (or until the next regularly scheduled meeting). Comment was made regarding a map edit change that should be made prior to final reading. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

[Mr. Cook joined the meeting in progress] ORDINANCE - Amending Chapter 13.12, Sewer System, of Title 13, Public Services, of the Code of the City of Cheyenne, Wyoming, by revising Section 13.12.030, Deposit of Excrement, Garbage or Objectionable Waste Prohibited, and adding Section 13.12.195, Unauthorized and Prohibited Discharges. Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body. (#4049)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, the S1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located at 812 Storey Boulevard). Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from Conditional MUB Mixed-Use Business (Ordinances #3891 & #3919) to MUR Mixed-Use Residential for Lots 1, 2, and the north 66 feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of East 23rd Street and Russell Avenue). Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Mr. Allen moved to amend Section 4 by replacing “MUB Mixed-Use Business” with “MUR-Mixed Use Residential”, seconded by Mr. Cook. It was noted the amendment is to correct a typographical error. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from HR High Density Residential (County) to HR-2 High Density Residential-Developing for a replat of portions of Tracts 245, 246, 247, and 248, and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming, to be known as Carter Cottages (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a portion of Tracts 1 and 7 and all of Tracts 26 and 27, Dell Range Addition; Lots 1 and 2, Smithson View, Laramie County, Wyoming, to be known as Thomas Heights Annexation (located between Ridge Road and College

Drive along Thomas Road). Speaking in opposition to annexation and the affiliated re-zoning and final plat as proposed were Brien McAdams, Gail Sundell, Kay McAdams and Rob Courtier. Concerns expressed included: Planning for sidewalks along North College Drive; property setbacks; traffic flow and safety; ingress/egress into the proposed residential subdivision to be built; reasonable measures to contain construction debris; proposed zoning classification for Lot 5, Block 8; effect of the housing development on aesthetic views; Unified Development Code requirements allowing for a cash-in-lieu payment by the developer vs. providing open green space or a park; quantity of residential lots to be built; pump station location; water levels in the area and drainage run-off; opposition to development in the area generally; planning for quality developments and responsible growth; appropriate buffers, and balancing growth between city and county boundaries. Speaking in favor of annexation and the proposed residential development project generally were: Jerry Ciz; Joe Patterson, President, Southeast Wyoming Homebuilders Association, and Jamie Ciz. Topics discussed included: Need for additional residential housing in the community; current number of buildable lots available within the City and local housing market; developer (Guardian Homes) plans and concessions made for the subdivision, and area growth, including other recent residential subdivisions that have been developed expanding City limits. Upon inquiry during comments, Brad Emmons, AVI, agent for the applicant (Guardian Homes), provided information on developer concessions for the project and changes that have been made since the initial proposal. Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Discussion included the request for annexation that was submitted by the property owners and conditions for annexation that have been met, and information on the Snyder Plaza development topic that had been raised during speaker comments. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-1 (County), Agricultural and Rural Residential, to AR, Agricultural Residential, for Lot 5, Block 8, Thomas Heights, and from A-1 (County), Agricultural and Rural Residential, and AR (County) Agricultural Residential, to MR-2, Medium-Density Residential-Developing, for the remainder of Thomas Heights, Cheyenne, Wyoming (located between Ridge Road and College Drive along Thomas Road). Speaking in opposition to the ordinance were: Brien McAdams, Kay McAdams and Rob Courtier. Topics included: Specific opposition to the proposed zoning classification for Lot 5, Block 8 and rationale in proposing an AR zone for the lot; allowable uses in an AR zone, and concerns with zoning laws and encroachment. Upon inquiry during comments, Brad Emmons, AVI, agent for the applicant, explained why the property owners of Lot 5, Block 8 requested an AR zone classification for the lot, and Brandon Cammarata, Planning and Development Director, provided information concerning Lot 5 and allowable uses within an AR zone. Mr. Allen moved to approve on second reading, seconded by Ms. Williams. Discussion topics included: Definition of the term "limited agriculture" relative to interpretation of the Unified Development Code and allowable uses. During comment regarding maintenance responsibility of a sidewalk if same were to be built on the east side of the development project (adjacent to North College Road), Mr. Allen raised a point of order that the inquiry was not applicable to the motion on the floor (i.e. zoning topic) and was more applicable to discussion on the plat. Mayor Kaysen concurred and requested comments remain on topic. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen advised the ordinance would be discussed again at the next Public Services Committee meeting, which will meet January 7, 2015

at noon in Room 122, Municipal Building.

[CA] RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, an Operating Administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307. Motion (per Consent Agenda) carried. (#5636)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government grant agreement for attendance at the 2015 Saving Places Conference. Motion (per Consent Agenda) carried. (#5637)

[CA] RESOLUTION - Designating local banks as depositories for municipal funds. Motion (per Consent Agenda) carried. (#5638)

RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Sara Vasquez, President, Cheyenne Public Employees Association, and Jon Bertsch, President, International Association of Firefighters Local #279, commented in support of the one-time employee recognition payment included in the re-appropriation, and expressed appreciation to members of the governing body for their consideration of the payment. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Discussion included the following topics: Timing of discussions by the administration involving the proposed employee recognition payment; mixed message involving the payment and recent comments involving possible lay-offs; payment to be taken from reserves where prior year budget savings were placed; status of the Employee Investment Study (EIS) and pending court decision; suggestion that a merit-based employee reward program be considered; employee recognition and the need to achieve median market salary value for positions; providing for funding of employee salary recognitions during the budget process, and the positive current economic environment. Upon inquiry, Ms. Vasquez reviewed the timeframe when the employee payment was last discussed by the CPEA Board, and her recollection that initial discussion on the funds being set aside for the payment was in August, prior to recent discussions concerning possible lay-offs. In response to queries, Mayor Kaysen advised approximately \$1.2 million in budget savings, which had been placed in reserves, was achieved through employee efforts to curtail expenditures for FY2013-2014; noted the savings were not intended to go toward implementation of the EIS plan but the intent is to provide employee recognition of efforts toward limiting expenditures during the last budget year; reviewed discussions held and analysis of the budget conducted resulting in the proposed payment in an estimated total amount of \$325,000 from unencumbered budget reserves, and explained the criteria employees must meet to receive the maximum payment amount of \$500. Upon inquiry, Dan White, City Attorney, provided an update on the EIS, stating the lawsuit that had been filed by the Wyoming Tribune-Eagle is still pending and that attorneys for both sides had submitted additional briefs in November as ordered by the District Court Judge. During comment regarding why the EIS was still in litigation, Mr. Brown raised a point of order that the EIS study was not related to the proposed resolution. Mayor Kaysen concurred with the point of order with Mr. Shanor voicing his objection to sustaining the point of order. Mayor Kaysen stated status of the EIS is under the control of the court, and, upon inquiry, provided information on the rationale for the employee recognition payment and his views of a merit-based employee program. Discussion continued on

the recognition payment, recent discussions involving future budget funding concerns, and suggestion of developing a merit-based employee reward program. Motion carried. Voting “yes” -- all members of the governing body. (#5639)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved an application to be submitted by the Board of County Commissioners of Laramie County, Wyoming, to the State Loan and Investment Board for 2015 - 2016 Countywide Consensus Block Grant Funding for the replacement of the roof of the Laramie County Historic Courthouse. Motion (per Consent Agenda) carried. (#5640)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has approved an application to be submitted on behalf of the Town of Pine Bluffs to the State Loan and Investment Board for 2013 - 2014 Countywide Consensus Block Grant Funding for the Pine Bluffs Veterans Memorial Project. Motion (per Consent Agenda) carried. (#5641)

[CA] RESOLUTION - Authorizing the Mayor to issue a letter setting forth the City’s informal commitments regarding a housing assessment to be conducted by the Wyoming Rural Development Council in conjunction with the United States Department of Housing and Urban Development. Motion (per Consent Agenda) carried. (#5642)

[CA] RESOLUTION - Approving Water and Sanitary Sewer Services, by Outside User’s Agreement, with Cheyenne Rail Hub, LLC, for portions of the Northwest 1/4 of Section 27 and the Northeast 1/4 of Section 28, T13N, R67W of the 6th P.M., Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Carter Cottages, a replat of portions of Tracts 245, 246, 247, and 248 and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Thomas Heights, a replat of Lots 1, 2 and 3, Smithson View, Tracts 26 and 27, and a portion of Tracts 1 and 7, Dell Range Addition, 2nd Filing, Cheyenne, Laramie County, Wyoming (located between Ridge Road and College Drive, south of Summit Drive) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] Contract between the City of Cheyenne, Youth Alternatives; Laramie County Community Juvenile Services Joint Powers Board, and Laramie County, Wyoming, for the provision of screening, counseling and supportive services to youth referred to the Juvenile Services Center Crisis Shelter. Motion (per Consent Agenda) carried. (#6269)

[CA] Professional Services Agreement between the City of Cheyenne, Urban Planning Office, and Ayres Associates for Brownfield Revolving Loan Fund Implementation (Environmental Protection Agency Brownfield Revolving Loan Fund) -- referred to Finance Committee.

[CA] Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and A.V.I., p.c., for the High Plains Road 35% Design Plan (MPO Planning funds) -- referred to Finance Committee.

[CA] Juvenile Accountability Block Grant Contract between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, for funding of Municipal Juvenile Court staffing and services -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6151 between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds). Motion (per Consent Agenda) carried (amount not to exceed \$4,419.50). (#6151)

[CA] Contract Modification No. 4 to Contract No. 6041 between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, to reduce held retention from 10% to 5% on the entire Municipal Pool and Expansion Project as allowed by W.S. §16-6-702 (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Amendments No. 1 to City Contracts No. 6137, 6134 and 6135 between the City of Cheyenne, Parks and Recreation Department, and Reiman Corp. and Subsidiary; Laramie County, Wyoming, and WC Investments, Inc., respectively, relating to the Polk Avenue Project and pertaining to reimbursements to be paid to the City of Cheyenne for portions of the costs of construction of the Polk Avenue Project -- referred to Finance Committee.

[CA] Authorization to purchase traffic striping paint and beads under Wyoming Department of Transportation Bid #14-335AA and #14-336AA (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$46,479.20).

[CA] Consideration of Bid #M-7-15 for a contract between the City of Cheyenne, Parks and Recreation Department, and Kolbe Striping, Inc., Castle Rock, Colorado, for the On-Street Bicycle Striping and Signage Project (1% Specific Purpose Sales & Use Tax, Misc. Grant Funds). Motion (per Consent Agenda) carried (amount not to exceed \$156,560.38). (#6270)

[CA] Consideration of Bid #M-9-15 for a contract between the City of Cheyenne, Forestry Division, and Western Tree Care, Inc., Cheyenne, Wyoming, for the City of Cheyenne Cemetery Complex Tree Removal project. Motion (per Consent Agenda) carried (amount not to exceed \$50,600.00). (#6271)

[CA] Consideration of Bid #M-10-15 for a contract between the City of Cheyenne, Landfill Division, and J-2 Contracting Company, Greeley, Colorado, for crushing concrete at the Happy Jack Landfill (Solid Waste Management). Motion (per Consent Agenda) carried (amount not to exceed \$156,600.00). (#6272)

[CA] Authorization to purchase one John Deere 772G Motor Grader with 6wd, new 2015 model under Wyoming Department of Transportation Bid #15-038MD, for the Street and Alley Division

(2011-2014 1% Sales Tax) -- referred to Finance Committee.

Re-Appointments of Paul M. Frauendienst to the Building Code Board of Appeals, Mark C. Hardee to the Fire Civil Service Commission, and Tony Adams to the Personnel Commission. Mr. Allen moved to approve, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointees).

Announcement was made of the Re-Appointments of Russell Pollard to the Police Civil Service Commission; Ann Esquibel Redman to the Personnel Commission, and Rick Ammon and Wes Peterson to the Historic Preservation Board, to be confirmed January 12, 2015.

Announcement was made of the Appointments of Kathryn O. Fay and Christina Bird to the Historic Preservation Board, and George Parks to the Police Civil Service Commission, to be confirmed January 12, 2015.

Announcement was made of a Public Hearing to be held January 12, 2015 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Mason Properties, Inc. (d/b/a to be determined), 2801 E. Lincolnway, Cheyenne, Wyoming (License currently held by KZ Corporation d/b/a Daisy Duke's Bar, 2801 E. Lincolnway, Cheyenne, Wyoming).

Announcement was made that the Sine Die meeting of the Governing Body will be held at 2:30 p.m., and the First Regular Meeting of the Governing Body will be held at 2:45 p.m., on Monday, January 5, 2015 in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Announcement was made that due to the Sine Die meeting of the Governing Body and the First Regular Meeting of the Governing Body on Monday, January 5, 2015, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 6, 2015 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 7, 2015 at Noon.

Under other business, Mayor Kaysen submitted and read a written veto message (on file with City Clerk's office) detailing his objections to Resolution No. 5635, adopted by majority vote at the December 8, 2014 meeting of the governing body. [City Clerk Note: Resolution No. 5635 is titled as follows: Resolution - Establishing guidelines for the maximum amount of excess revenue that may be collected for the operation of Cheyenne's Solid Waste Fund.] Contained in Mayor Kaysen's reading of his veto message were references to mayoral veto authority provisions and procedures contained in Chapter 2.04 of City Code, and provisions of Wyo. Stat. § 16-4-104 (b), Preparation of budgets; contents; review. Upon procedural inquiry, Dan White, City Attorney, advised of City Council members' process and options to act, or not act, upon the mayor's veto. Mr. Shanor moved to override the mayor's veto, seconded by Ms. Williams. Discussion followed on the concern with lack of prior notice to City Council members regarding the veto action, and potentially postponing action on the veto to vet information that Mayor Kaysen presented in his statements, particularly with regard to state statute budget provisions; how a potential postponement will involve newly elected Council members joining the governing body membership at the next regular meeting, and,

if the motion were to be postponed, who would be responsible for “vetting” the information. In response to the timing of submittal of his written veto and objections, Mayor Kaysen explained his veto took considerable time to deliberate and prepare. Mr. Allen moved to postpone the motion to override the veto to January 12, 2015 (next regular meeting of the governing body), seconded by Mr. Brown. Discussion included comments in support as well as non-support of postponing the motion. Motion to postpone failed (due to a tie vote). Voting “yes” -- Mr. Allen, Mr. Brown, Mr. Cook, Mr. Valdez and Mayor Kaysen. Voting “no” -- Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Shanor and Ms. Williams. Comments followed on recognizing the “will of a large majority of the Council”. It was noted that pursuant to state statute, a mayor does not have the authority to vote on their own veto. Motion to override the Mayor’s veto carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Brown and Dr. Rinne. Pursuant to a point of order raised by Mr. Allen regarding the number of votes required for the motion to carry, it was verified that a minimum 2/3rds affirmative vote of City Council members (i.e. 9 members) was required.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:15 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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